

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Arreaga	Team: Squad #02	CCRB Case #: 201507812	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/15/2015 12:54 PM	Location of Incident: - Van Doren Street and Horace Harding Expressway; - 110th Precinct stationhouse.	18 Mo. SOL 3/15/2017	Precinct: 110
Date/Time CV Reported Tue, 09/15/2015 1:09 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/15/2015 1:09 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Zuopeng Zheng	25461	943985	110 PCT
2. An officer			110 PCT
3. SGT Elizabeth Murray	02585	923668	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Zuopeng Zheng	Discourtesy: At Horace Harding Expressway and Van Doren Street in Queens, PO Zuopeng Zheng spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . An officer	Discourtesy: At the 110th Precinct stationhouse, an officer spoke rudely to § 87(2)(b)	B . Officer(s) Unidentified
C . An officer	Abuse: At the 110th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)	C . Officer(s) Unidentified
D . SGT Elizabeth Murray	Abuse: At the 110th Precinct Stationhouse, Sgt. Elizabeth Murray did not process § 87(2)(b)'s complaint regarding an officer.	D . Unsubstantiated

Case Summary

On September 15, 2015, at approximately 12:54 p.m., PO Zuopeng Zheng of the 110th Precinct stopped the vehicle in which § 87(2)(b) was an occupant at Van Doren Street and Horace Harding Expressway in Queens for using a cellphone. During their interaction, PO Zheng allegedly told § 87(2)(b) “I don’t give a damn fuck if I know you” and “fuck the PBA card” (**Allegation A**). § 87(2)(b) was issued a summons for having a cellphone to his right ear while driving (Board Review 01). An hour later, § 87(2)(b) saw PO Zheng at the 110th Precinct stationhouse. As he was walking inside the stationhouse to file a complaint against PO Zheng a second officer allegedly told § 87(2)(b) “I don’t give a damn fuck; I could put you in handcuffs” (**Allegations B and C**). Inside the 110th Precinct stationhouse, § 87(2)(b) requested to file a complaint against PO Zheng and Sgt. Elizabeth Murray allegedly instructed him to call 311 to file his complaint (**Allegation D**).

Video Footage

- There is no existing video footage regarding the incident.

Mediation, Civil and Criminal Histories

- Mediation was offered to but rejected by § 87(2)(b)
- As of October 20, 2015 § 87(2)(b) has not filed a notice of claim regarding this incident (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two previous CCRB complaints § 87(2)(b)
- PO Zheng has been a member of the NYPD for eight years, has had seven previous CCRB allegations involving three cases with no substantiated allegations (see officer history).
- Sgt. Murray has been a member of the NYPD for 16 years, has had six previous CCRB allegations involving three cases with no substantiated allegations (see officer history).

Potential Issues

- A passenger was present in the vehicle with § 87(2)(b) during the incident. § 87(2)(b) refused to provide any contact information for the witness.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) alleged that an officer told him “I don’t give a damn fuck; I could put you in handcuffs” outside of the 110th Precinct stationhouse. He described this officer as a 45 year old white male with blonde hair and blue eyes, approximately 5’6”-5’7” tall and in uniform. A CTS search for officer identification conducted based off of tour 1’s roll call on the day of the incident resulted in 24 officers who matched the description of a white male from the 101st Precinct. § 87(2)(b) alleged the officer spoke to him outside of the precinct stationhouse; § 87(2)(g)

§ 87(2)(g) PO Zheng stated he was alone when exiting the stationhouse and did not see any other officer present. Sgt. Murray stated she had no knowledge as to which officers § 87(2)(b) spoke to prior to entering the 110th Precinct stationhouse. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A -Discourtesy: PO Zuopeng Zheng spoke rudely to § 87(2)(b)

PO Zheng observed § 87(2)(b) using a cellphone while driving and ordered him to pull over on the corner of Horace Harding Expressway and Van Doren Street. PO Zheng approached § 87(2)(b)'s vehicle and asked for his identification and vehicle registration. § 87(2)(b) told PO Zheng that he recognized him. § 87(2)(b) alleged that PO Zheng responded "I don't give a damn fuck if I know you" (Board Review 04). § 87(2)(b) then attempted to show PO Zheng a PBA card he had and PO Zheng allegedly told him "fuck the PBA card" (Board Review 05).

PO Zheng stated that he pulled over and issued § 87(2)(b) a summons without incident. PO Zheng recognized § 87(2)(b) after § 87(2)(b) brought up the fact that he recognized him first. § 87(2)(b) did not attempt to show him a PBA card. PO Zheng denied ever making the alleged statements or using any profanity towards § 87(2)(b)

§ 87(2)(g) It is therefore recommended that allegation A be closed as **unsubstantiated**.

Allegation B -Discourtesy: At the 110th Precinct stationhouse, an officer spoke rudely to § 87(2)(b)

Allegation C -Abuse: At the 110th Precinct stationhouse, an officer threatened to arrest § 87(2)(b)

§ 87(2)(g) It is therefore recommended that allegations B and C be closed as **officer unidentified**.

Allegation D -Abuse: At the 110th Precinct stationhouse, Sgt. Elizabeth Murray did not process § 87(2)(b)'s complaint regarding an officer.

§ 87(2)(b) arrived at the stationhouse approximately an hour after the vehicle stop to file a complaint with PO Zheng's supervisor. § 87(2)(b) requested an officer complaint form from Sgt. Murray who allegedly informed him that the stationhouse does not give them out and directed him to call 311 instead in order to file his complaint. § 87(2)(b) alleged that Sgt. Murray did not process his complaint regarding PO Zheng (Board Review 06).

Sgt. Murray stated that § 87(2)(b) arrived at the stationhouse to complain about an officer, who she later identified as PO Zheng. Sgt. Murray asked § 87(2)(b) if he would like to file a Civilian Complaint Review Board (CCRB) complaint and § 87(2)(b) responded that he had the phone number for the CCRB but did not want to file a complaint with the CCRB. Sgt. Murray explained that aside from the CCRB complaint form there was nothing much she could

do. Sgt. Murray denied ever directing § 87(2)(b) to contact 311 in order to file his complaint and could not recall whether § 87(2)(b) asked for an officer complaint form.

§ 87(2)(g)

. It is therefore recommended that allegation D be closed as **unsubstantiated**.

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date